BRENDAN NGWA NFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **DIANA CANDELARIA, in her individual capacity; and STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity; and DOES 1 through 10, inclusive,** Defendants.	Case No. _____ **COMPLAINT FOR DAMAGES AND FOR DECLARATORY AND INJUNCTIVE RELIEF** (42 U.S.C. § 1983; 28 U.S.C. §§ 2201, 2202; Ex parte Young) (1) 14A -- PDD -- Structural Bias; (2) 14A -- PDD -- Denial of Fair Hearing; (3) Declaratory Relief; (4) Injunctive Relief. **[DEMAND FOR JURY TRIAL]**

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, brings this action against Defendants DIANA CANDELARIA, in her individual capacity, and STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity, and alleges as follows:

INTRODUCTION

1. This is a civil rights action under 42 U.S.C. section 1983 challenging the process by which Defendant Diana Candelaria, a California Department of Motor Vehicles Driver Safety Hearing Officer, suspended Plaintiff Brendan Ngwa Nforbi's Class A Commercial Driver's

License for one year and imposed a three-year SR-22 financial-responsibility requirement that continues to burden Plaintiff today. Plaintiff brings claims for damages against Candelaria in her individual capacity, and claims for prospective declaratory and injunctive relief against Defendant Steve Gordon, Director of the California DMV, in his official capacity under Ex parte Young, 209 U.S. 123 (1908).

2. The suspension rests on an administrative-per-se refusal hearing conducted on January 24, 2025, in which Candelaria operated simultaneously as the DMV's evidence-gatherer, advocate, and adjudicator -- a dual-role framework that three separate California Court of Appeal decisions had condemned before Plaintiff's hearing. Candelaria's written decision sustained the suspension without addressing a formal Penal Code section 851.6 Detention Certificate issued by the arresting agency itself, reclassifying the underlying arrest as "a detention only, not an arrest" for "insufficient grounds"; without addressing the California Supreme Court's requirement of observed volitional movement in Mercer v. DMV, 53 Cal.3d 753 (1991); and without addressing objective dashcam evidence materially contradicting the sworn officer's statement on which the suspension was based. The decision stated that "no evidence was presented to the contrary" when, in fact, contrary evidence had been presented in writing and at the hearing.

3. Although the one-year suspension period has expired, Plaintiff continues to suffer present adverse effects: a three-year SR-22 requirement running through approximately February 2028, a $125.00 reissue fee, and continuing commercial-driving-record consequences that affect his employability. These ongoing burdens are traceable to Candelaria's decision and redressable by prospective relief against Gordon. Plaintiff seeks compensatory and punitive damages against Candelaria, declaratory and injunctive relief against Gordon, and attorney's fees under 42 U.S.C. section 1988.

JURISDICTION AND VENUE

4. This Court has original subject-matter jurisdiction under 28 U.S.C. section 1331 (federal question) and 28 U.S.C. section 1343(a)(3) and (a)(4) (civil rights). The claims arise under the Fourteenth Amendment as enforced through 42 U.S.C. section 1983, and seek declaratory and injunctive relief under 28 U.S.C. sections 2201 and 2202.

5. Venue is proper in the Northern District of California under 28 U.S.C. section 1391(b)(2). The arrest that triggered the APS proceeding occurred on Interstate 580 East in Livermore, Alameda County. The Detention Certificate was issued by the Dublin CHP Area in Alameda County. The arresting officers whose sworn statements Candelaria relied on are stationed in this District. A related civil-rights action against those officers, Ngwa Nforbi v. Meza-Gonzalez & Melano (N.D. Cal.), is pending in this District.

6. Under Civil Local Rule 3-2(c) and (d), this action arose in Alameda County and is appropriately assigned to the San Francisco Division or the Oakland Division.

PARTIES

7. Plaintiff BRENDAN NGWA NFORBI is a natural person and a resident of San Joaquin County, California. At all times prior to the challenged decision, he held a valid California Class A Commercial Driver's License (No. F7953179) with endorsements for doubles/triples and tank vehicles. He is a professional commercial truck driver whose livelihood depends on his CDL.

8. Plaintiff has appeared in prior proceedings arising from this incident under the name variant "Brendan Ngehsi Newanforbi." That is the same individual. This Complaint uses "Brendan Ngwa Nforbi" throughout except where quoting from a prior record.

9. Defendant DIANA CANDELARIA is employed by the California DMV as a Driver Safety Hearing Officer. She presided over Plaintiff's APS hearing (APS Case No. 34739340) and signed the February 11, 2025 written decision. She was acting under color of state law at all relevant times. She is sued in her individual capacity only.

10. Defendant STEVE GORDON is the Director of the California DMV, charged with administration and enforcement of the APS suspension scheme under Vehicle Code sections 13353 through 13389 and with supervision of DMV Driver Safety Hearing Officers. He is sued in his official capacity only, and solely for prospective declaratory and injunctive relief under Ex parte Young.

11. The true names of Defendants DOES 1 through 10 are presently unknown. Each is sued in his or her individual capacity. Plaintiff will seek leave to amend when their identities are ascertained.

FACTUAL ALLEGATIONS

A. The November 1, 2024 Arrest and Its Aftermath

12. On November 1, 2024, at approximately 12:54 a.m., Plaintiff was parked and asleep in a rented vehicle on the right shoulder of Interstate 580 East in Livermore, Alameda County. CHP Officers Santiago Meza-Gonzalez and Jose Melano approached, opened the vehicle without consent, and arrested Plaintiff for suspected driving under the influence. The encounter was captured on the officers' dashcam recording (CHP Case No. RJ68845).

13. Following the arrest, Officer Meza-Gonzalez executed a sworn DS-367 Officer's Statement and CHP Arrest-Investigation Report. Those documents contain representations that are materially contradicted by the dashcam recording -- including a claimed "strong distinct odor

of an alcoholic beverage" that neither officer verbalizes on the recording, a characterization of Plaintiff's speech as "slurred" when the recording captures coherent conversation, a claim that Plaintiff was "very confused and disoriented" when the recording shows him correctly identifying his location, and a checked box for "Beverage Present: Yes" when the only liquid the officers found was, in Officer Melano's own words on the recording, "piss." The contradictions between the sworn statements and the recording are the subject of the related Ngwa Nforbi v. Meza-Gonzalez & Melano action pending in this District.

14. On November 5, 2024, the Dublin CHP issued a Detention Certificate under Penal Code section 851.6, reclassifying the event as "a detention only, not an arrest" and releasing Plaintiff under Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint." The Alameda County District Attorney declined to file any charges.

B. The DMV APS Process and Plaintiff's Written Defense

15. The DS-367 executed by Officer Meza-Gonzalez triggered automatic administrative-per-se suspension proceedings under Vehicle Code sections 13353 et seq. Plaintiff timely requested a hearing.

16. On December 4, 2024, the DMV issued a Notice of Hearing Appointment (Form DS 2304, Rev. 05/2023) setting the hearing for January 24, 2025 before Defendant Candelaria via Microsoft Teams. The same notice imposed a commercial-driving restriction on Plaintiff's Temporary License pending the hearing outcome.

17. Form DS 2304 states, verbatim: "The Hearing Officer will develop the facts and render a final decision on your matter." That sentence describes the merger of investigative, advocacy, and adjudicative functions within a single officer -- the structural configuration that

three California Court of Appeal decisions had condemned before Plaintiff's hearing.

18. On December 9, 2024, Plaintiff submitted a five-page Notice of Response to Request for Discovery identifying the dashcam evidence, the contradictions in the DS-367, the Detention Certificate, and controlling authority including Mercer v. DMV, 53 Cal.3d 753 (1991). Plaintiff also placed the Detention Certificate and a dashcam transcript into the administrative record.

C. The January 24, 2025 Hearing

19. On January 24, 2025, Defendant Candelaria presided over Plaintiff's APS hearing. At the hearing, Candelaria gathered and marshaled evidence on behalf of the DMV, offered the DMV's documentary exhibits, ruled on Plaintiff's objections to those exhibits, evaluated Plaintiff's testimony, and issued the ultimate decision on the merits -- all within the same proceeding and without a separate advocate presenting the DMV's case.

20. Plaintiff appeared and testified under penalty of perjury. He presented the Detention Certificate, referenced the dashcam evidence, and argued the authority cited in his December 9 submission.

D. The February 11, 2025 Written Decision

21. On February 11, 2025, Candelaria issued a written Notification of Findings and Decision in APS Case No. 34739340, sustaining a one-year suspension of Plaintiff's Class A CDL (Feb. 20, 2025 through Feb. 19, 2026) and imposing: (a) a $125.00 reissue fee under Vehicle Code sections 14904 and 14906; and (b) a three-year SR-22 financial-responsibility requirement under Vehicle Code section 16430.

22. The written decision did not address the Detention Certificate. It did not address Penal

Code sections 849(b)(1), 849(c), 849.5, or 851.6(a). It did not analyze Mercer's requirement of observed volitional movement. It did not address the contradictions between the DS-367 and the dashcam recording. It stated that "no evidence was presented to the contrary" -- a characterization that is inconsistent with the record, which contained Plaintiff's written submission, the Detention Certificate, and the dashcam transcript.

23. The decision treated the DS-367 as dispositive without engaging with the contrary evidence in the record. The practical effect was that the officer's sworn statement was treated as conclusive regardless of what the driver presented.

E. The Dual-Role Framework:
Three Appellate Condemnations Before Plaintiff's Hearing

24. By the date of Plaintiff's hearing, three published California Court of Appeal decisions had condemned the DMV's practice of appointing hearing officers who act simultaneously as advocates and adjudicators in APS proceedings: California DUI Lawyers Ass'n v. DMV, 77 Cal.App.5th 517 (2022); Knudsen v. DMV, 101 Cal.App.5th 186 (2024); and Clarke v. Gordon, 104 Cal.App.5th 1267 (2024). Clarke names Defendant Gordon personally as respondent. The pattern of dual-role conduct described in those decisions -- marshaling evidence, offering exhibits, overruling objections, and deciding the merits -- is consistent with Candelaria's conduct at Plaintiff's hearing.

25. On information and belief, the dual-role framework condemned in those decisions remained in operational effect at the time of Plaintiff's hearing, as reflected in the DMV's own Form DS 2304, and remains in effect today. Defendant Gordon, as Director of the DMV, has not restructured hearing-officer functions, revised Form DS 2304, or implemented training or oversight adequate to prevent the recurrence of the dual-role configuration.

F. The Lawful-Arrest Predicate

26. The APS refusal-suspension framework requires, as a statutory predicate, that the driver have been "lawfully arrested." Cal. Veh. Code section 13353(a)(1). At the time of Plaintiff's hearing, the lawful-arrest predicate was contested by at least two independent factors: (a) no officer had observed Plaintiff in volitional movement of the vehicle, raising a question under Mercer, 53 Cal.3d at 760-62; and (b) the CHP's own Detention Certificate had reclassified the event as "a detention only, not an arrest" under Penal Code section 849(b)(1), with the statutory consequence that the event "shall not be deemed an arrest" under Penal Code sections 849(c) and 849.5.

27. Candelaria's written decision did not address either factor. Whether the lawful-arrest predicate was satisfied is a contested question that Candelaria's decision left unresolved.

G. Ongoing Consequences

28. The one-year suspension period (Feb. 20, 2025 through Feb. 19, 2026) has expired. But the following consequences of Candelaria's decision remain in effect:

(a) SR-22 requirement. Candelaria's decision imposed a three-year SR-22 financial-responsibility mandate under Vehicle Code section 16430, running through approximately February 2028. Plaintiff currently maintains California Auto Insurance Policy No. 11411043872 (Dairyland / Viking Insurance Company of Wisconsin), a Named Non-Owner SR-22 policy with an annual premium of $281.28, solely because of this mandate. The SR-22 is not the same as the general financial-responsibility requirement of Vehicle Code section 16020; it is a high-risk filing imposed only as a consequence of specified adverse administrative actions, filed by the insurer directly with the DMV, and restricting the pool of carriers willing to insure Plaintiff.

(b) Reissue fee. The $125.00 reissue fee under Vehicle Code sections 14904 and 14906 remains imposed.

(c) Commercial-driving-record consequences. The APS suspension event on Plaintiff's commercial-driving record is a lookback item that affects his employability with commercial motor carriers and the terms on which carriers will offer employment.

29. Each of these is a present, continuing adverse effect traceable to Candelaria's decision and redressable by the prospective relief requested against Gordon.

H. Damages

30. As a direct and proximate result of the challenged decision, Plaintiff has suffered: (a) loss of his commercial-driving privilege and the professional employment that depended on it; (b) lost wages of approximately $69,368 in base pay during the suspension period, plus overtime and premium pay, plus lost employment benefits; (c) out-of-pocket expenses including SR-22 premiums, the reissue fee, and alternative transportation costs; (d) continuing career impact from the disqualification event on his commercial-driving record; and (e) emotional distress, humiliation, and reputational injury from the arbitrary destruction of his professional livelihood.

31. Plaintiff had secured new professional employment two days before the November 1, 2024 encounter. That employment was terminated by the suspension.

FIRST CAUSE OF ACTION

42 U.S.C. § 1983 -- Fourteenth Amendment --
Procedural Due Process -- Structural Bias
(Against Defendant Candelaria in Her Individual Capacity
and Defendant Gordon in His Official Capacity)

32. Plaintiff re-alleges paragraphs 1 through 31.

33. The Due Process Clause requires that adjudicative deprivations of protected property interests be conducted by a neutral decisionmaker. Withrow v. Larkin, 421 U.S. 35, 46-47 (1975). A driver's license is a protected property interest. Bell v. Burson, 402 U.S. 535, 539 (1971).

34. Candelaria conducted Plaintiff's hearing within the DMV's dual-role framework, functioning as evidence-gatherer, advocate, and adjudicator in a single proceeding. That framework is reflected in the DMV's own Form DS 2304 ("The Hearing Officer will develop the facts and render a final decision on your matter") and is consistent with the structural configuration condemned in California DUI Lawyers Ass'n, Knudsen, and Clarke v. Gordon. The underlying due-process principles are federal. Withrow, 421 U.S. at 46-47.

35. Candelaria's functions at the hearing included gathering and marshaling evidence, offering the DMV's exhibits, ruling on Plaintiff's objections, and deciding the merits. Those functions merge roles traditionally separated between advocate and adjudicator.

36. As a direct and proximate result, Plaintiff has suffered the damages alleged in paragraphs 30-31. Gordon's continued enforcement of the decision's consequences under the same framework causes continuing present adverse effects redressable by prospective relief.

SECOND CAUSE OF ACTION

42 U.S.C. § 1983 -- Fourteenth Amendment --
Procedural Due Process -- Denial of a Fair Hearing
(Against Defendant Candelaria in Her Individual Capacity
and Defendant Gordon in His Official Capacity)

37. Plaintiff re-alleges paragraphs 1 through 31.

38. Procedural due process requires meaningful engagement with the evidence and controlling authority presented by the parties. Goldberg v. Kelly, 397 U.S. 254, 267-68 (1970); Mathews v. Eldridge, 424 U.S. 319, 344-45 (1976).

39. Candelaria's written decision did not address: (a) the Detention Certificate, which goes directly to the statutory predicate of Vehicle Code section 13353(a)(1); (b) the Mercer volitional-movement requirement, which Plaintiff invoked in writing before the hearing; (c) the mandatory statutory language of Penal Code sections 849(c) and 849.5; (d) the contradictions between the DS-367 and the dashcam recording, which Plaintiff placed in the record; or (e) any of the three California Court of Appeal decisions Plaintiff had cited. The decision stated that "no evidence was presented to the contrary" when the record contained written evidence to the contrary.

40. These are not allegations that Candelaria weighed evidence and reached an unfavorable conclusion. They are allegations that the written decision did not engage with material evidence and controlling authority that was in the record, and that it characterized the record in a manner inconsistent with its contents.

41. As a direct and proximate result, Plaintiff has suffered the damages alleged in

paragraphs 30-31. Gordon's continued enforcement of the decision's consequences causes continuing present adverse effects redressable by prospective relief.

THIRD CAUSE OF ACTION

42 U.S.C. § 1983; 28 U.S.C. §§ 2201, 2202 -- Declaratory Relief
(Against Defendant Gordon in His Official Capacity)

42. Plaintiff re-alleges paragraphs 1 through 31.

43. An actual controversy exists between Plaintiff and Defendant Gordon concerning: (a) the constitutional adequacy of the DMV's dual-role APS hearing framework; (b) the DMV's continuing enforcement of Plaintiff's suspension consequences; and (c) the DMV's treatment of the Detention Certificate and the statutory predicate of Vehicle Code section 13353(a)(1).

44. Plaintiff seeks a declaratory judgment that: (a) the DMV's APS hearing framework, as applied to Plaintiff and as implemented under Form DS 2304, violates the Due Process Clause of the Fourteenth Amendment; and (b) the continuing enforcement of the consequences of Candelaria's decision -- including the SR-22 requirement, reissue fee, and commercial-driving-record notations -- based on a decision issued in a constitutionally deficient proceeding, violates Plaintiff's Fourteenth Amendment rights.

45. This relief is prospective. Plaintiff does not seek damages against Gordon. The SR-22 mandate runs through approximately February 2028; the commercial-record consequences are ongoing; and the dual-role framework remains in effect. Each is a continuing, present adverse effect within the meaning of Ex parte Young.

46. Plaintiff has standing to seek this relief. Villa v. Maricopa County, 865 F.3d 1224,

1229 (9th Cir. 2017).

FOURTH CAUSE OF ACTION

42 U.S.C. § 1983 -- Injunctive Relief

(Against Defendant Gordon in His Official Capacity)

47. Plaintiff re-alleges paragraphs 1 through 31.

48. The continuing enforcement of Plaintiff's suspension consequences under the dual-role framework constitutes an ongoing violation of federal law for which Ex parte Young authorizes prospective injunctive relief.

49. Plaintiff seeks the following injunctive relief:

(a) An order vacating the February 11, 2025 decision in APS Case No. 34739340 as issued in a constitutionally deficient proceeding;

(b) An order vacating the three-year SR-22 requirement imposed under Vehicle Code section 16430 and directing the DMV to notify the relevant insurers that Plaintiff is no longer subject to the SR-22 filing;

(c) An order vacating the $125.00 reissue fee;

(d) An order directing the DMV to expunge from Plaintiff's driving record all notations arising from the vacated decision; and

(e) An order requiring that any future APS hearing involving Plaintiff be conducted before

a hearing officer whose functions do not include the DMV's evidence-gathering and advocacy roles.

50. Plaintiff has no adequate remedy at law. Damages against Candelaria cannot vacate the suspension record, lift the SR-22 encumbrance, or prevent the same framework from being applied to Plaintiff in a future proceeding.

51. The balance of equities and the public interest favor relief. The State has no legitimate interest in maintaining suspension consequences imposed through a constitutionally deficient process, based on an arrest that the arresting agency itself reclassified as a detention for insufficient grounds.

52. This Court's jurisdiction to grant prospective injunctive relief against a state officer in his official capacity is established by Ex parte Young, 209 U.S. 123 (1908), and Verizon Md. Inc. v. Public Serv. Comm'n, 535 U.S. 635, 645-46 (2002). The Eleventh Amendment does not bar this relief.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGWA NFORBI respectfully prays for judgment as follows:

A. Against Defendant Candelaria, in her individual capacity: compensatory damages in an amount according to proof at trial, including lost wages, lost earning capacity, out-of-pocket expenses, continuing career impact, and emotional distress; and punitive damages in an amount sufficient to punish and deter;

B. Against Defendant Gordon, in his official capacity: a declaratory judgment in the terms

set forth in paragraph 44 and injunctive relief in the terms set forth in paragraph 49;

C. Reasonable attorney's fees and costs pursuant to 42 U.S.C. section 1988;

D. Pre- and post-judgment interest; and

E. Such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Pursuant to Rule 38 of the Federal Rules of Civil Procedure and the Seventh Amendment to the United States Constitution, Plaintiff demands a trial by jury on all issues so triable, including all claims for damages against Defendant Candelaria in her individual capacity.

Dated: August 7, 2026

Respectfully submitted,

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BRENDAN NGWA NFORBI

Plaintiff, In Pro Per